

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
JEBRIL ELNISAFI

Plaintiff,

SUMMONS

Index No.

Plaintiff designates Kings
County as the place of trial

-against-

Plaintiff resides in Kings
County

-and-

CITY OF NEW YORK

-and-

LT. JOHN SELLITTI, in his individual and official capacities.

-and-

P.O. DEIDRE DEFREITAS (Shield No. 29055), in her
individual and official capacities.

Defendants.
-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the verified complaint in this
action and to serve a copy of your answer on the undersigned attorneys for Plaintiff within twenty

(20) days after the service of this summons, exclusive of the day of service (or within thirty [30] days after service is completed if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

Dated: October 21, 2024

SPODEK LAW GROUP, P.C.

/s/

BY: Jeremy G. Feigenbaum, Esq.
Spodek Law Group P.C.
Attorneys for Plaintiff
233 Broadway, Suite 710
New York, NY 10279
(347) 292-8630

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
JEBRIL ELNISAFI

Plaintiff,

VERIFIED COMPLAINT

Index No.

-against-

CITY OF NEW YORK

-and-

LT. JOHN SELLITTI, in his individual and official capacities.

-and-

P.O. DEIDRE DEFREITAS (Shield No. 29055), in her
individual and official capacities.

Defendants.

-----X

Plaintiff JEBRIL ELNISAFI (“Plaintiff”), by his attorneys, Spodek Law Group P.C., as
and for his complaint against the defendants CITY OF NEW YORK, LT. JOHN SELLITTI, and
P.O. DEIDRE DEFREITAS (and collectively, “Defendants”), respectfully allege as follows, upon
information and belief:

NATURE OF THE CLAIM

1. This is an action seeking damages for, *inter alia*, injuries sustained by Plaintiff as
a result of a high-ranking member of the New York Police Department (“NYPD”) creating a false

narrative of events, unsupported by any evidence, which resulted in the baseless arrest and prosecution of Plaintiff, when in fact, he was the victim in need of protection from the NYPD.

JURISDICTION AND VENUE

2. The jurisdiction of this Court is invoked pursuant to CPLR §§ 301-302; venue is appropriate pursuant to CPLR §502 as Plaintiff resides in the County of Kings, City and State of New York, and Kings County is the situs of the unlawful activity giving rise to the instant action.

THE PARTIES

3. At all times herein mentioned, Plaintiff Jebril Elnisafi was and is a natural born person, and resident of the County of Kings, City and State of New York.

4. At all times herein mentioned, Defendant NYPD John Sellitti is a natural born person, and resident of the State of New York, and employed by New York Police Department as a lieutenant.

5. At all times herein mentioned, Defendant P.O. Diedre Defreitas (Shield No. 29055) is a natural born person, and a resident of the State of New York. Defendant Defreitas was and is further employed by the New York Police Department as a police officer with the 77th Precinct.

6. At all times relevant, Defendant City Of New York (“Defendant City”) was and is a municipal corporation, duly organized pursuant to the laws of the State of New York. It is authorized by law to maintain a municipal police force, the New York Police Department

(“NYPD”). The NYPD as such, is authorized to perform all functions of a municipal law enforcement department, acting under the direction and supervision of Defendant City.

7. At all times hereinafter mentioned, and upon information and belief, the individual defendants are named herein both personally and in their official representative capacities as police officers employed by the Defendant City. And that each and all of the acts of the individual defendants alleged herein were done by the individual defendants and each of them under cover and pretense of the statutes and laws of the State of New York, and under and by virtue of their authority as police officers and employees of Defendant City. Each and all of the acts of the defendants alleged herein were done by said defendants while acting as employees of Defendant City.

8. Pursuant to General Municipal Law §50-e, Plaintiff served a timely notice of claim upon the City of New York, which was confirmed and received by Defendant City and assigned claim number 2024PI012540.

9. Pursuant to Plaintiff’s filed notice of claim, Plaintiff was required to, and did sit for a 50-H hearing, held by the City of New York on or about June 26, 2024.

10. Plaintiff is commencing the instant action within one year and ninety days of the occurrence of the events which give rise to Plaintiff’s instant causes of action, described *infra*.

11. More than 30 days have elapsed since the filing of Plaintiff’s notices of claim, both of which have been neglected by Defendants.

BACKGROUND FACTS

12. On or about September 26, 2023 at 10:00 am, Plaintiff was at his residence at 1428 Saint Johns Place, Fl. 2, Brooklyn, NY 11213 (hereinafter, "Residence"), preparing to leave for an appointment he had scheduled.

13. However, as Plaintiff was about to exit his Residence, Plaintiff noticed a person was attempting to break into his Residence via the front door. Plaintiff, shocked at what he was witnessing, stood in front of the front door listening, trying to understand what was happening on the other side of the front door before realizing the person on the other side was attempting to force the front door open.

14. Plaintiff proceeded to open the front door to his Residence and confront the person attempting to break into his front door. Upon opening the front door, Plaintiff asked the person, in sum and substance, why he was breaking into his home.

15. While stating this to the would-be-burglar, Plaintiff noticed the burglar had a number of tools with him to aid in breaking into Plaintiff's Residence, including but not limited to a crowbar, a hammer and bolt cutters.

16. The burglar then proceeded to swing the bolt cutters at Plaintiff in an attempt to injure him, to which Plaintiff blocked said blow using the bag of burglary tools. At this point, Plaintiff determined the best course of action would be to go to the nearby 77th police precinct (approximately three or four blocks from Plaintiff's Residence) and inform them of the events that had just transpired.

17. To wit, Plaintiff actually stated to the burglar that he was going to the NYPD's 77th precinct; the burglar proceeded to follow Plaintiff for a few blocks, running and chasing after Plaintiff as Plaintiff attempted to make it to the 77th precinct. The man followed Plaintiff until Plaintiff was approximately two blocks from the precinct, when the burglar turned around as Plaintiff continued on. Plaintiff had grabbed the bag of burglary tools to present to the NYPD.

18. Upon arriving at the 77th precinct, Plaintiff informed members of the NYPD who were on-duty at the time about the burglar, known to Plaintiff as "Terrance Joyce" who happened to be a vagrant who frequently had been seen in and around Plaintiff's neighborhood. Plaintiff proceeded to inform the officers at the 77th precinct about the attempted break-in by Mr. Joyce, and showed the officers the bag of burglary tools he had grabbed from Mr. Joyce. Officers at the precinct instructed Plaintiff to return to the Residence and call 911.

19. Plaintiff understood, but before leaving, informed officers at the 77th precinct that he did not want to continue having possession of the bag of burglary tools as it was not his, and he wanted to bring it to the police as evidence of the attempted break-in. Despite this, officers at the 77th precinct forbid Plaintiff from leaving the bag of burglary tools. Plaintiff protested.

20. After discussing the matter, members of the 77th precinct agreed to take both Plaintiff, themselves and the bag of tools to Plaintiff's Residence, which they proceeded to do.

21. After arriving back at his Residence, Plaintiff informed two members of the NYPD who had transported him back to his Residence (Defendant Defreitas and another officer) details of the events which led him to go to the 77th precinct that morning.

22. To wit, Plaintiff showed Defendant Defreitas and the male officer the damage to his front door by Mr. Joyce, after which Defendant Defreitas proceeded to take photographs of the damaged door, with marks all over the door jam as a result of Mr. Joyce's attempting to force the door open.

23. Plaintiff also showed the two officers the damage done to his security system, which had been ripped out by Mr. Joyce from the position on top of the front door. Again Defendant Defreitas took photographs of the damaged security system, the pry marks on Plaintiff's front door frame, the bag of burglary tools, and then drafted a complaint report which Plaintiff and Defendant Defreitas signed.

24. Almost immediately after Plaintiff and Defendant Defreitas executed the complaint document, Mr. Joyce physically appeared from around a corner; Plaintiff noticed him and immediately pointed him out to the officers on scene.

25. Upon Plaintiff identifying Mr. Joyce as the would-be-burglar, members of the NYPD detained Mr. Joyce and placed him in the back of one of the officer's patrol vehicles.

26. After placing Mr. Joyce in the patrol vehicle, officers on scene radioed for a supervisor to come on to the scene, and thus Defendant Sellitti of the 77th precinct arrived shortly after this request. At this time, Mr. Joyce had not made any allegations against Plaintiff or that Plaintiff was in any way responsible for any of the marks/wounds on his person.

27. Upon his arrival to Plaintiff's Residence, Plaintiff informed Defendant Sellitti of the events which had just occurred with respect to Mr. Joyce, just as he had with the officers already on scene.

28. As Plaintiff attempted to show Defendant Sellitti the damage marks on his front door, as he had to Defendant Defreitas, Defendant Sellitti refused to view the damage to the front door, and instead went to speak with Mr. Joyce.

29. Upon going over to Mr. Joyce, Defendant Sellitti noticed that Mr. Joyce had old bruises and marks on the right side of his face; said marks/bruises had already begun to heal and were visibly not freshly inflicted wounds.

30. Upon seeing Mr. Joyce's marks and bruises, without prompt from Mr. Joyce, Defendant Sellitti began asking suggestive questions, all the while without even giving time for Mr. Joyce to answer. As an example, Defendant Sellitti questioned what had happened to Mr. Joyce's face, and before Mr. Joyce could answer, Defendant Sellitti suggestively stated that it was Plaintiff that had caused said marks and bruises. Sitting in the back of a patrol car, in handcuffs, Mr. Joyce seized at the opportunity to further the false narrative being created by Defendant Sellitti and agreed with Defendant Sellitti, despite he himself never actually accusing Plaintiff of any malfeasance.

31. Upon returning to Plaintiff, Defendant Sellitti informed Plaintiff that Mr. Joyce was claiming that Plaintiff had caused Mr. Joyce's injuries. Plaintiff, flabbergasted, explained that such action was impossible, as Plaintiff was only weeks removed from major, extensive surgery to

repair tendons in his right hand (Plaintiff is right-handed). In fact, Plaintiff further informed Defendant Sellitti that he had a brace on his hand for six weeks, which he had just removed while performing physical therapy, and that Plaintiff was actually on his way to the hospital for further imaging of his right hand and arm when Mr. Joyce attempted to break-in to his Residence.

32. Plaintiff then proceeded to show Defendant Sellitti various medical documentation on his phone, proving that he was injured, had surgery and was on his way for further treatment; Plaintiff even showed Defendant Sellitti the scars still very visible from the recent surgery on his right hand and arm. Plaintiff further explained that because of the surgery, Plaintiff's hand was effectively a 'claw' that he could not completely close, not even to make a fist.

33. Additionally, Plaintiff informed Defendant Sellitti that any of the marks on Mr. Joyce's person were clearly old and had already started healing, thereby it being impossible for Plaintiff to have inflicted such wounds that very same day.

34. Despite all of this, Defendant Sellitti directed Defendant Defreitas to arrest Plaintiff for the alleged assault on Mr. Joyce. Defendant Sellitti further pushed Plaintiff and shoved him, despite Plaintiff not resisting and even stating to Defendant Sellitti that he would comply with his orders. Despite this, Defendant Sellitti shoved Plaintiff and tightened the handcuffs, causing injury to Plaintiff's wrists and hands, and further exacerbating Plaintiff's prior injury to his right hand and arm.

35. Even more astonishingly, Defendant Sellitti not only ordered the baseless arrest of Plaintiff, but he then proceeded to order Mr. Joyce to be uncuffed and released from detainment,

which Defendant Defreitas proceeded to do. Incredibly, after uncuffing and releasing Mr. Joyce, Defendant Sellitti returned the bag of burglary tools to Mr. Joyce. Defendant Sellitti ordered all of the aforementioned events without conducting even a modicum of inquiry, let alone a reasonable one.

36. Further, while Plaintiff was handcuffed and placed in the back of a patrol car, Plaintiff informed Defendant Sellitti that he wanted to notify someone of his arrest. Instead of aiding Plaintiff in making such notification, Defendant Sellitti tightened the handcuffs of Plaintiff. This was despite the fact that Plaintiff informed him that the tightened handcuffs were causing him pain, which later led to bruising and swelling on his wrists and hands, as well as continued damage to Plaintiff's recently surgically repaired right hand.

37. Moreover, during the ride to the 77th precinct, Plaintiff continued to tell Defendant Defreitas that the handcuffs were causing him pain. Specifically, Plaintiff Defendant Defreitas about his recently surgically repaired right hand, that his hands were tingling and numb due to the tightness of the handcuffs. No one came to Plaintiff's aid.

38. The tightness of the handcuffs would leave marks and bruises on Plaintiff's wrists, and the tingling and numbness in his hands did not subside for over a day. Plaintiff's wrists remained swollen for over a week.

39. Upon his arrest being effectuated, Plaintiff continued to inform Defendant Defreitas that his handcuffs were too tight and causing pain, and Plaintiff was then brought by police officers to the 77th precinct. When Plaintiff returned to the 77th precinct in custody, members of the NYPD

at the precinct were shocked to see Plaintiff in custody, as he had hours earlier arrived at the same precinct and informed some of the very same officers of Mr. Joyce's attempted break-in.

40. One officer present at the time Plaintiff was brought back to the 77th precinct in custody stated in sum and substance to Plaintiff that he could not understand why Plaintiff had been arrested, and that Defendant Sellitti was, in sum and substance, 'crazy.'

41. While Plaintiff was in a holding cell at the 77th precinct, members of the NYPD had a discussion with Defendant Sellitti, explaining that Plaintiff had reported the break-in attempt by Mr. Joyce earlier that day. Upon hearing this, Defendant Sellitti effectively attempted to undo his actions by returning to Plaintiff's neighborhood, searching for Mr. Joyce, and eventually re-arresting Mr. Joyce for the attempted break-in of Plaintiff's apartment.

42. After approximately 9 hours in custody, Plaintiff was eventually released from the 77th precinct around 7:00 pm that same day, and was given a desk appearance ticket to appear to answer for the alleged assault of Mr. Joyce.

43. Eventually, on or about October 15, 2023 Defendant Defreitas reiterated Defendant Sellitti's baseless version of events, described *supra*, in a sworn criminal court complaint in Kings County Criminal Court. The fact that Defendant Defreitas would somehow credit Defendant Sellitti's and Mr. Joyce's fantastical version of events as to September 26, 2023 is even more astonishing and disturbing.

44. As stated, *supra*, Plaintiff originally went to the 77th precinct in the early part of September 26, 2023 to inform the NYPD that Mr. Joyce, a known neighborhood vagrant,

attempted to break into his Residence with the aid of a number of tools. Plaintiff even showed Defendant Defreitas the bag of tools Mr. Joyce had used to aid his attempted break-in. Plaintiff further explained, as he did to Defendant Sellitti that Mr. Joyce's injuries were clearly old and not recently inflicted, in addition to his injuries sustained to his right hand, which had required surgery to repair, and that he was further in physical therapy for the injuries.

45. Despite Plaintiff being the complaining victim, and despite a clear set of facts and circumstances which clearly demonstrated that Mr. Joyce's version of events was completely fabricated due to Defendant Sellitti's suggestive questioning of Mr. Joyce, Defendant Defreitas arrested Plaintiff.

46. Plaintiff was forced to make two court appearances in Kings County Criminal Court, and eventually on or about January 16, 2024 all charges against Plaintiff were dismissed.

47. Prior to Plaintiff's baseless arrest, Plaintiff had been improving in his recovery from surgery on his right hand. Plaintiff had gotten to the point where he was finally able, after weeks of physical therapy, to put his own clothes on, do some household chores, etc. without feeling much pain. However, after Plaintiff was released from custody, Plaintiff regressed and began feeling more and more pain in his right hand. Whereas prior to his arrest, Plaintiff had been able to relatively easily accomplish tasks such as typing or reaching behind his back, but after his arrest, due to the injuries caused by Defendant Sellitti and Defendant Defreitas, Plaintiff was unable to accomplish said tasks, and would often have to stop mid-task due to the pain.

48. The injuries suffered by Plaintiff further caused him to undergo additional physical therapy sessions in order to remediate the damage caused by Defendant Sellitti and Defendant Defreitas.

49. In addition to the physical injuries sustained by Plaintiff, he too lost economic opportunities as well. As of the date of Plaintiff's arrest, Plaintiff was in the process of going through the New York City Department of Education's hiring process for a position as Group Leader of the N.I.A. program. Plaintiff had his fingerprints taken and completed various classes including mandated reporter classes and certification, NYS health and safety classes and certification.

50. Plaintiff's employment was approved by the DOE pending a criminal background investigation. However, because of Defendants' baseless arrest and creation of a false narrative surrounding Mr. Joyce's attempted break-in, the matter appeared in a criminal background investigation. DOE then informed Plaintiff that due to the pending criminal matter, he was being denied employment.

51. Further, Plaintiff was held in handcuffs without cause in front of his residence for nearly an hour, allowing his friends and neighbors to see him cuffed. Due to Plaintiff's baseless arrest, Plaintiff has and continues to suffer not only the physical injuries, described *supra*, but mental anguish as well. Specifically, Plaintiff's standing in the community has been damaged, and his neighbors no longer actively engage with him in and around the neighborhood. To wit, one

neighbor of Plaintiff's plainly told Plaintiff that because he was arrested, he therefore must be a criminal and now no longer engages with Plaintiff in any way.

52. Unfortunately, Defendant City has known about various issues surrounding Defendant's Sellitti and Defreitas' ability to follow department procedures, including failure to properly provide accurate and truthful details of events which occurred whilst he was on-duty.

53. Specifically, on or about January 23, 2014, Defendant Sellitti failed to not only timely report that he had discharged his firearm, but that he too failed to properly safeguard his firearm, and was further found to possess excessive number of firearms. Defendant City found Defendant Sellitti guilty of the aforementioned charges on or about September 5, 2014.

54. Incredibly, Defendant City was further on notice as to Defendant Defreitas' propensity to engage in the use of excessive force, including excessively tight handcuffs. Specifically, in *Crumble v. City of New York, et., al.*, Case No. 14-cv-1776 (E.D.N.Y. 2014), the plaintiff there made repeated allegations against Defendant Defreitas that she knowingly tightened the handcuffs of the plaintiff, despite being informed that the excessively tight handcuffs were causing injury and pain to the plaintiff. Amazingly, when Defendant Defreitas was made aware of the plaintiff's complaints about the handcuffs at the time of injury, Defendant Defreitas blamed the plaintiff.

55. Additionally, Defendant Defreitas was again alleged to have used excessive force against an individual in *Quinones v. City of New York, et., al.* Case No. 14-cv-00867 (E.D.N.Y.

2014) where she was part of a group of officers who, without probable cause, violently pull a citizen out of his vehicle and beat him.

56. Defendant City was forced to settle the aforementioned actions, combined, for over \$200,000.00.

57. As such, Defendant City was well aware that, prior to Defendants Defreitas and Sellitti's interaction with Plaintiff on September 26, 2023, that said Defendants had a history of engaging in excessive force and failing to properly document events and follow department procedures.

STATEMENT OF CLAIMS

AS AND FOR A FIRST CAUSE OF ACTION **(Negligent Supervision and Training) (As to Defendant City)**

58. Plaintiff repeats, reiterates and realleges each and every allegation made in the foregoing paragraphs, as if fully set forth at length herein.

59. Plaintiff realleges and reincorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein

60. Defendant Sellitti and Defendant Defreitas were, and continue to be in, an employer-employee relationship. Specifically, Defendant City employs Defendant Sellitti and Defendant Defreitas as a lieutenant and police officer, respectively, in the New York Police Department.

61. As stated, *supra*, Defendant Sellitti has had repeated allegations made against him for failing to properly document the events at the scene of an incident. Further, as stated *supra*,

Defendant Defreitas has been accused on multiple occasions of engaging in false arrest and excessive force. Accordingly, Defendant City had actual knowledge of Defendant Sellitti and Defendant Defreitas propensity to engage in acts which constitute failure to properly document the events of an incident and propensity to engage in the unlawful detention, arrest and the use of excessive force against an arrestee.

62. Despite having actual knowledge of such propensity, Defendant City nonetheless allowed Defendant Sellitti and Defendant Defreitas to continue in his employment with Defendant City, including as a police officer and lieutenant in the NYPD, whereby Defendant City knew, or had reason to believe that Defendant Sellitti and Defendant Defreitas would continue to be placed in situations, by virtue their positions within the NYPD, where they could continue their practice of failure to properly document activities of an incident, false arrest, and the use of excessive force.

63. Defendant Sellitti did in fact fail to properly document the activities of an incident, yet again, when he failed to properly document the account of the attempted break-in of Plaintiff's residence by Mr. Joyce and further created a false narrative designed to allow for the arrest of Plaintiff, described *supra*, all while acting outside the scope of his employment.

64. Defendant Defreitas did in fact use excessive force, when she physically handcuffed Plaintiff in an excessively tight manner, to which she was alerted to by Plaintiff multiple times. Further, her use of excessive force caused injuries to Plaintiff's hands, including his recently surgically repaired right hand, described *supra*, while acting outside the scope of her employment.

65. As a result of Defendant City's failure to ensure that Defendant Sellitti and Defendant Defreitas were no longer in a positions to continue their unlawful acts, Defendant Sellitti and Defendant Defreitas were able to again act unlawfully, described *supra*. Further, as a result of said conduct, Plaintiff suffered injuries to his hands and arms, as well as loss of employment with the DOE and further was subject to mental anguish and ridicule by leaving Plaintiff handcuffed in the street for all to see.

66. Accordingly, Defendant City is liable for negligent supervision and retention of Defendant Sellitti and Defendant Defreitas, in an amount to be determined after trial..

AS AND FOR A SECOND CAUSE OF ACTION
(Respondeat Superior) (As to Defendant City)

67. Plaintiff repeats, reiterates and realleges each and every allegation made in the foregoing paragraphs, as if fully set forth at length herein.

68. Defendant Defreitas was, and continue to be in, an employer-employee relationship. Specifically, Defendant City employs and Defendant Defreitas as a police officer in the New York Police Department.

69. Defendant Defreitas did in fact use excessive force, when she physically handcuffed Plaintiff in an excessively tight manner, to which she was alerted to by Plaintiff multiple times. Further, her use of excessive force caused injuries to Plaintiff's hands, including his recently surgically repaired right hand, all while in the process of arresting Plaintiff, described *supra*.

70. Defendant Defreitas did the aforementioned acts in furtherance of her employment

duties to Defendant City, in that her handcuffing of Plaintiff was in furtherance of the arrest of Plaintiff.

71. Defendant Defreitas' handcuffing of Plaintiff was done within the scope of her employment as member of the NYPD, and said conduct was reasonably foreseeable that Defendant Defreitas would handcuff Plaintiff, as it is within the normal course of business to secure an arrestee with handcuffs.

72. Defendant Defreitas handcuffing of Plaintiff in a manner which was negligent and which a reasonable officer in the same or similar circumstances would know to cause excessive injury and damage to Plaintiff, especially in light of her actual knowledge of Plaintiff's recently surgically repaired right hand.

73. As a result of Defendants Sellitti's and Defreitas' actions, Plaintiff suffered injuries to his hands and arms, as well as loss of employment with the DOE and further was subject to mental anguish and ridicule by leaving Plaintiff handcuffed in the street for all to see

74. Accordingly, Defendant City is liable to Plaintiff under the doctrine of *respondeat superior* in an amount to be determined after trial..

AND AS TO A THIRD CAUSE OF ACTION

(False Arrest-New York State Law) (Defendants Sellitti and Defreitas)

75. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

76. In committing the acts and commissions complained of herein, Defendant Sellitti and Defendant Defreitas acted under color of state law, individually, to deprive Plaintiff of his

constitutionally protected rights under the constitution and laws of the State of New York, which includes the right to be free from a warrantless arrest absent probable cause.

77. By their conduct, as described herein, and acting under color of state law to deprive the Plaintiff of his right to be free from unreasonable searches and seizures and arrest without reasonable suspicion or probable cause, Defendant Sellitti and Defendant Defreitas are liable for violation of New York State Law.

78. Specifically, Defendant Defreitas, despite being at the precinct at the time Plaintiff first arrived there to inform officers that Mr. Joyce had just attempted to burglarize his Residence, and despite reviewing Plaintiff's provided medical information and despite seeing that Mr. Joyce's injuries were not fresh or recently caused, and knowing that it was medically impossible for Plaintiff to have caused Mr. Joyce's injuries, Defendant Defreitas proceeded to effectuate the baseless arrest of Plaintiff, without probable cause.

79. As to Defendant Sellitti, knowing Plaintiff first arrived at the precinct to inform officers that Mr. Joyce had just attempted to burglarize his Residence, and despite reviewing Plaintiff's provided medical information and despite seeing that Mr. Joyce's injuries were not fresh or recently caused, and knowing that it was medically impossible for Plaintiff to have caused Mr. Joyce's injuries, Defendant Sellitti concocted a false narrative concerning the cause of Mr. Joyce's injuries in order to form a basis to arrest Plaintiff.

80. To wit, Defendant Sellitti used this baseless narrative to direct the arrest of Plaintiff. Here, described *supra*, Defendant Sellitti and Defendant Defreitas proceeded to arrest Plaintiff

despite a complete and total lack of evidence demonstrating probable cause to effectuate such an arrest, and failed to conduct any reasonable inquiry or investigation prior to arresting Plaintiff.

81. As a direct and proximate result of Defendant Sellitti's and Defendant Defreitas' unlawful actions, Plaintiff has suffered, and will continue to suffer, damages including, physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment, as described, *supra*. Additionally, Plaintiff suffered the loss of his job offer with the DOE.

82. Moreover, the unlawful conduct of the aforementioned Defendant was willful, malicious, oppressive and/or reckless, and was of such a nature that punitive damages should be imposed.

83. Here, described *supra*, Defendant Sellitti and Defendant Defreitas proceeded to arrest Plaintiff despite a complete and total lack of evidence demonstrating probable cause to effectuate such an arrest, and failed to conduct any reasonable inquiry or investigation prior to arresting Plaintiff.

84. As a direct and proximate result of Defendant Sellitti's and Defendant Defreitas' unlawful actions, Plaintiff has suffered, and will continue to suffer, damages including, physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment, as described, *supra*. Additionally, Plaintiff suffered the loss of his job offer with the DOE.

85. Moreover, the unlawful conduct of the aforementioned Defendants were willful, malicious, oppressive and/or reckless, and was of such a nature that punitive damages should be imposed.

AND AS TO A FOURTH CAUSE OF ACTION**(False Arrest) 42 U.S.C. 1983 (As to Defendants Sellitti and Defreitas)**

86. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

87. In committing the acts and commissions complained of herein, Defendant Sellitti and Defendant Defreitas acted under color of state law, individually, to deprive Plaintiff of his constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable searches and seizures, which includes the right to be free from a warrantless arrest absent probable cause.

88. By their conduct, as described herein, and acting under color of state law to deprive the Plaintiff of his right to be free from unreasonable searches and seizures and arrest without reasonable suspicion or probable cause as required by the Fourth and Fourteenth Amendments, Defendant Sellitti and Defendant Defreitas are liable for violation of 42 U.S.C. § 1983 which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

89. Specifically, Defendant Defreitas, despite being at the precinct at the time Plaintiff first arrived there to inform officers that Mr. Joyce had just attempted to burglarize his Residence, and despite reviewing Plaintiff's provided medical information and despite seeing that Mr. Joyce's injuries were not fresh or recently caused, and knowing that it was medically impossible for Plaintiff to have caused Mr. Joyce's injuries, Defendant Defreitas proceeded to effectuate the baseless arrest of Plaintiff, without probable cause.

90. As to Defendant Sellitti, knowing Plaintiff first arrived at the precinct to inform officers that Mr. Joyce had just attempted to burglarize his Residence, and despite reviewing Plaintiff's provided medical information and despite seeing that Mr. Joyce's injuries were not fresh or recently caused, and knowing that it was medically impossible for Plaintiff to have caused Mr. Joyce's injuries, Defendant Sellitti concocted a false narrative concerning the cause of Mr. Joyce's injuries in order to form a basis to arrest Plaintiff.

91. To wit, Defendant Sellitti used this baseless narrative to direct the arrest of Plaintiff. Here, described *supra*, Defendant Sellitti and Defendant Defreitas proceeded to arrest Plaintiff despite a complete and total lack of evidence demonstrating probable cause to effectuate such an arrest, and failed to conduct any reasonable inquiry or investigation prior to arresting Plaintiff.

92. As a direct and proximate result of Defendant Sellitti's and Defendant Defreitas' unlawful actions, Plaintiff has suffered, and will continue to suffer, damages including, physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment, as described, *supra*. Additionally, Plaintiff suffered the loss of his job offer with the DOE.

93. Moreover, the unlawful conduct of the aforementioned Defendant was willful, malicious, oppressive and/or reckless, and was of such a nature that punitive damages should be imposed.

AND AS TO A FIFTH CAUSE OF ACTION
(Denial of Right to Fair Trial) New York State Law (As to Defendants Defreitas)

94. Plaintiff realleges and reincorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

95. As described more fully above, Defendant Defreitas, while acting under color of law, deprived Plaintiff of his constitutional right to a fair trial.

96. Defendant Defreitas, despite being at the precinct at the time Plaintiff first arrived there to inform officers that Mr. Joyce had just attempted to burglarize his Residence, and despite reviewing Plaintiff's provided medical information and the marks and bruises to Mr. Joyce, then provided false allegations to prosecutors, by stating that Mr. Joyce's marks and bruises were caused by Plaintiff, and as such, her statements were calculated to improperly influence prosecutors into effectuating a criminal prosecution, and would likely influence a jury.

97. Despite reviewing Plaintiff's medical information, and knowing that it was medically impossible for Plaintiff to have caused Mr. Joyce's injuries, and despite seeing that Mr. Joyce's injuries were not fresh or recently caused, Defendant Defreitas provided her false statement likely to influence a jury and effectuate criminal prosecution against Plaintiff.

98. By fabricating the false reports and statements, Defendant Defreitas thereby mislead and misdirected the criminal prosecution of Plaintiff. Absent this misconduct, the prosecution of Plaintiff could not and would not have been pursued.

99. In committing the acts and omissions complained of herein, Defendant Defreitas acted under color of state law to deprive Plaintiff of his constitutionally protected rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

100. As a direct and proximate result of the Defendant's deprivation of Plaintiff's constitutional rights, Plaintiff suffered injuries and damages, as set forth, *surpa*.

101. The unlawful conduct of Defendant Defreitas was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

AND AS TO A SIXTH CAUSE OF ACTION

(Denial of Right to Fair Trial) 42 U.S.C. 1983 (As to Defendant Defreitas)

102. Plaintiff realleges and reincorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

103. As described more fully above, Defendant Defreitas, while acting under color of law, deprived Plaintiff of his constitutional right to a fair trial.

104. Defendant Defreitas, despite being at the precinct at the time Plaintiff first arrived there to inform officers that Mr. Joyce had just attempted to burglarize his Residence, and despite reviewing Plaintiff's provided medical information and the marks and bruises to Mr. Joyce, then provided false allegations to prosecutors, by stating that Mr. Joyce's marks and bruises were caused by Plaintiff, and as such, her statements were calculated to improperly influence prosecutors into effectuating a criminal prosecution, and would likely influence a jury.

105. Despite reviewing Plaintiff's medical information, and knowing that it was medically impossible for Plaintiff to have caused Mr. Joyce's injuries, and despite seeing that Mr. Joyce's injuries were not fresh or recently caused, Defendant Defreitas provided her false statement likely to influence a jury and effectuate criminal prosecution against Plaintiff.

106. By fabricating the false reports and statements, Defendant Defreitas thereby mislead and misdirected the criminal prosecution of Plaintiff. Absent this misconduct, the prosecution of Plaintiff could not and would not have been pursued.

107. In committing the acts and omissions complained of herein, Defendant Defreitas acted under color of state law to deprive Plaintiff of his constitutionally protected rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

108. As a direct and proximate result of the Defendant's deprivation of Plaintiff's constitutional rights, Plaintiff suffered injuries and damages, as set forth, *surpa*.

109. The unlawful conduct of Defendant Defreitas was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

AND AS TO A SEVENTH CAUSE OF ACTION
(Failure to Intervene) New York State Law (Defendant Defreitas)

110. Plaintiff realleges and reincorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

111. Plaintiff's constitutional right to due process was violated by Defendant Sellitti when Defendant Sellitti, knowing Plaintiff first arrived at the precinct to inform officers that Mr. Joyce had just attempted to burglarize his Residence, and despite reviewing Plaintiff's provided medical information and despite seeing that Mr. Joyce's injuries were not fresh or recently caused, and knowing that it was medically impossible for Plaintiff to have caused Mr. Joyce's injuries, Defendant Sellitti concocted a false narrative concerning the cause of Mr. Joyce's injuries in order to form a basis to arrest Plaintiff.

112. Defendant Defreitas was present when Defendant Sellitti began creating a false narrative, described *supra*. Accordingly, Defendant Defreitas had actual knowledge that Plaintiff's constitutional rights were being violated by Defendant Sellitti.

113. Defendant Defreitas was in the immediate vicinity of Defendant Sellitti when Defendant Sellitti created a false narrative, and despite this, Defendant Defreitas did not take any steps or actions to intervene and prevent Defendant Sellitti from violating Plaintiff's constitutional rights.

114. Defendant Defreitas has a duty to intervene to prevent Defendant Sellitti's unlawful actions, described *supra*.

115. Defendant Defreitas had a reasonable opportunity to intervene in Defendant Sellitti's unlawful conduct as she was near Defendant Sellitti and Plaintiff, and were clearly able to hear and see Defendant Sellitti violate Plaintiff's rights.

116. Defendant Defreitas failed to intervene and protect Plaintiff, thus subjecting him to harm and injury, described *supra*.

117. Accordingly, Defendant Defreitas is liable to Plaintiff for failing to intervene in an amount to be determined after trial

EIGHTH CAUSE OF ACTION

(Failure to Intervene) 42 U.S.C. 1983 (As to Defendant Defreitas)

118. Plaintiff realleges and reincorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

119. Plaintiff's constitutional right to due process was violated by Defendant Sellitti when Defendant Sellitti, knowing Plaintiff first arrived at the precinct to inform officers that Mr. Joyce had just attempted to burglarize his Residence, and despite reviewing Plaintiff's provided medical information and despite seeing that Mr. Joyce's injuries were not fresh or recently caused,

and knowing that it was medically impossible for Plaintiff to have caused Mr. Joyce's injuries, Defendant Sellitti concocted a false narrative concerning the cause of Mr. Joyce's injuries in order to form a basis to arrest Plaintiff.

120. Defendant Defreitas was present when Defendant Sellitti began creating a false narrative, described *supra*. Accordingly, Defendant Defreitas had actual knowledge that Plaintiff's constitutional rights were being violated by Defendant Sellitti.

121. Defendant Defreitas was in the immediate vicinity of Defendant Sellitti when Defendant Sellitti created a false narrative, and despite this, Defendant Defreitas did not take any steps or actions to intervene and prevent Defendant Sellitti from violating Plaintiff's constitutional rights.

122. Defendant Defreitas has a duty to intervene to prevent Defendant Sellitti's unconstitutional actions, described *supra*.

123. Defendant Defreitas had a reasonable opportunity to intervene in Defendant Sellitti's unlawful conduct as she was near Defendant Sellitti and Plaintiff, and were clearly able to hear and see Defendant Sellitti violate Plaintiff's rights.

124. Defendant Defreitas failed to intervene and protect Plaintiff, thus subjecting him to harm and injury, described *supra*.

125. Accordingly, Defendant Defreitas is liable to Plaintiff for failing to intervene in an amount to be determined after trial.

AND AS TO AN NINETH CAUSE OF ACTION
(False Imprisonment) New York State Law (As to Defendants Sellitti and Defreitas)

126. Plaintiffs repeat, reiterate and reallege each and every allegation made in the foregoing paragraphs, as if fully set forth at length herein.

127. Specifically, Defendant Defreitas, despite being at the precinct at the time Plaintiff first arrived there to inform officers that Mr. Joyce had just attempted to burglarize his Residence, and despite reviewing Plaintiff's provided medical information and despite seeing that Mr. Joyce's injuries were not fresh or recently caused, and knowing that it was medically impossible for Plaintiff to have caused Mr. Joyce's injuries, Defendant Defreitas proceeded to effectuate the baseless arrest of Plaintiff, without probable cause.

128. As to Defendant Sellitti, knowing Plaintiff first arrived at the precinct to inform officers that Mr. Joyce had just attempted to burglarize his Residence, and despite reviewing Plaintiff's provided medical information and despite seeing that Mr. Joyce's injuries were not fresh or recently caused, and knowing that it was medically impossible for Plaintiff to have caused Mr. Joyce's injuries, Defendant Sellitti concocted a false narrative concerning the cause of Mr. Joyce's injuries in order to form a basis to confine Plaintiff.

129. To wit, Defendant Sellitti used this baseless narrative to direct the arrest of Plaintiff. Here, described *supra*, Defendant Sellitti and Defendant Defreitas proceeded to arrest Plaintiff despite a complete and total lack of evidence demonstrating probable cause to effectuate such an arrest, and failed to conduct any reasonable inquiry or investigation prior to confining Plaintiff.

130. Plaintiff was aware of this confinement and protested Defendants actions.

131. At no point in time did Plaintiff ever consent to his confinement by Defendants,

and the confinement was not otherwise privileged.

132. Therefore, Defendants are liable to Plaintiff for false imprisonment.

133. Accordingly, Defendants are liable in an amount to be determined after trial, but in an amount that exceeds all jurisdictional limits.

AND AS TO A TENTH CAUSE OF ACTION

(Battery) New York State Law (As to Defendants Sellitti and Defreitas)

134. Plaintiff repeats, reiterate and reallege each and every allegation made in the foregoing paragraphs as if fully set forth herein.

135. On or about September 26, 2023 Defendant Sellitti intentionally grabbed and shoved Plaintiff, causing bruising and discomfort.

136. Additionally, on or about September 26, 2023 Defendant Defreitas intentionally handcuffed Plaintiff in a manner which was excessive and excessively tight, thereby causing bruising, swelling, numbness, tingling, and further damage to his recently surgically repaired right hand, which required additional physical therapy to remedy.

137. Defendants Sellitti's and Defreitas' intentional and harmful contact with Plaintiff was not consented to by Plaintiff at any time.

138. Accordingly, Defendants are liable to Plaintiff for battery for an amount to be determined after trial.

AND AS TO A ELEVENTH CAUSE OF ACTION

(Excessive Force) 42 U.S.C. 1983 (As to Defendants Sellitti and Defreitas)

139. Plaintiff realleges and reincorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein

140. The Fourth Amendment to the US Constitution protects persons from being subjected to excessive force while being stopped, and eventually arrested by police officers. In other words, a law enforcement official may only use the amount of force necessary under the circumstance to effectuate a stop and/or arrest.

141. In this matter, on or about September 26, 2023 Defendant Sellitti intentionally grabbed and shoved Plaintiff, causing bruising and discomfort.

142. Additionally, on or about September 26, 2023 Defendant Defreitas intentionally handcuffed Plaintiff in a manner which was excessive and excessively tight, thereby causing bruising, swelling, numbness, tingling, and further damage to his recently surgically repaired right hand, which required additional physical therapy to remedy.

143. Defendants' actions were objectively unreasonable as there was no cause for alarm or that Plaintiff posed any threat to any law enforcement official, and served no legitimate basis.

144. Accordingly, Defendants are liable to Plaintiff for excessive force in an amount to be determined after trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs respectfully demands judgment against Defendants as follows:

A. Plaintiff respectfully demands judgment on all his asserted causes of action against Defendants; and

B. For an Order directing Defendants to reimburse Plaintiffs for all costs and attorney's fees associated with the commencement and prosecution of this action; and

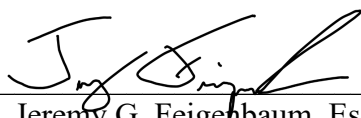
C. For such other and further relief as this Court deems necessary, just and proper.

JURY TRIAL DEMAND

Plaintiff requests a jury trial on all questions of fact raised by their complaint.

Dated: October 21, 2024
New York, New York

SPODEK LAW GROUP, P.C.


BY: Jeremy G. Feigenbaum, Esq.
Spodek Law Group P.C.
Attorneys for Plaintiff
233 Broadway, Suite 710
New York, NY 10279
(347) 292-8630

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
JEBRIL ELNISAFI

Plaintiff,

COMPLAINT

Index No.

-against-

CITY OF NEW YORK

-and-

LT. JOHN SELLITTI

-and-

P.O. DEIDRE DEFREITAS (Shield No. 29055)

Defendants.
-----X

VERIFIED COMPLAINT

SPODEK LAW GROUP P.C.
Attorneys for Plaintiff

_____/s/_____
BY: Jeremy G. Feigenbaum, Esq.
233 Broadway, Suite 710
New York, NY 10279
Tel.: (347) 292-8630
Fax.: (212) 300-6371

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contention contained in the annexed documents are not frivolous.

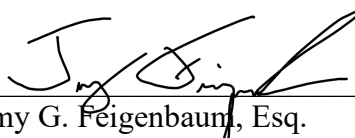
ATTORNEY'S VERIFICATION

Jeremy G. Feigenbaum, Esq., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am a member of the firm Spodek Law Group, PC, attorneys of record for Plaintiff Jebril Elnisafi in the action within.

I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files and conversations with my client.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently nor does he reside in the county wherein the attorneys for Plaintiff maintain their offices.

Dated: October 21, 2024
New York, NY



Jeremy G. Feigenbaum, Esq.